

FROM Robert Samuel White
TO Publicinformation
CC [Lane County Deputy]; OPRD Commissioners; Governor Kotek; Countyadministrator
DATE September 23, 2026, 3:02 PM PT
SUBJECT **Re: Reopen #26-825; the fee waiver denial has no stated basis**
ATTACHED 2026-09-23-lane-county-second-denial.pdf

Thank you for correcting the closure. Your office wrote: "This was an error. There was boilerplate language in the template I was using and I neglected to delete the language that was not applicable to this request." The request is open. That matter is closed between us.

The fee waiver is not. Your office answered my request for the basis of the denial by quoting ORS 192.324(5) and then stating: "Lane County has reviewed your request for a fee waiver and has concluded that the disclosure of the records you have requested would not primarily benefit the general public."

That is the statute followed by the conclusion. Between them there is nothing. A custodian's denial must be reasonable under the totality of the circumstances, and a denial that identifies no circumstance, weighs no factor, and engages no part of the showing it solicited cannot be evaluated by anyone, including a reviewer. In *Defense of Animals v. Oregon Health Sciences University*, 199 Or App 160 (2005).

Your office set the standard it would apply. Your questionnaire states that Lane County "considers all factors set out in the Attorney General's Public Records and Meetings Manual and relevant legal authorities," and names four: the time, expense, and interference with regular business; the volume of records; the necessity to segregate exempt from non-exempt material; and the extent to which the records do not further the public interest.

Not one of those four has been named in either denial. I addressed all of them on September 23, and I addressed the Manual's factors besides. Your office's own figures answer three of them: the expense is \$71.91 by your estimate, the volume is two categories scoped in your own spreadsheet, and the segregation burden is the one your office carried when it reviewed and released the item 8 records at no charge in four minutes. The fourth, the public interest, is the one your office is required to weigh, and it has instead been announced.

I will state the ground again, since it has not been answered. On March 27, 2026, at 11:04 AM, a United States Forest Service special agent emailed a Lane County deputy, subject "Siltcoos WC Volunteer," copying two Oregon State Police detectives, and transmitted my name, my date of birth, my driver's license number, my residence, my work schedule, my duties, my correspondence, and my text messages, with a commitment to "keep you up to date."¹ The state's own file concludes there is no evidence I committed any crime.¹ Items 1 and 2 are the record of what your office did with that transmission. Whether a county sheriff's office circulates, acts on, or retains a citizen's personal file sent to it without a crime is not a private curiosity. It is the conduct of a public body, and it is the reason

the statute exists.

The archive at oprdivolunteerabuse.org publishes the records of eight state and federal institutions in this matter at permanent public addresses, and it already carries this county's correspondence. Records produced under this request will be public within days. There is no commercial purpose and no advertising.

Name the factor. State which of the four your office relies on, and how it was weighed against the public interest in the records, so that the denial is a decision under ORS 192.324(5) rather than an announcement. Until then the denial stands unexplained, and this letter stands with it on the public record.

Respectfully,

Robert Samuel White